BY ORDER OF THE
SECRETARY OF THE AIR FORCE

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Personnel

FAMILY CARE PLANS

COMPLIANCE WITH THIS PUBLICATION IS MANDATORY

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This publication implements Air Force Policy Directive 36-29, *Military Standards*, and supplements Department of Defense instruction (DoDI) 1342.19, *Family Care Plans*. It provides guidance and procedures on the implementation, execution, and management of the family care plan program. In collaboration with the Chief of the Air Force Reserve (AF/RE), the Director of the Air National Guard (NGB/CF) and the Deputy Chief of Space Operations for Human Capital (SF/S1), the Deputy Chief of Staff for Manpower, Personnel, and Services (AF/A1) develops personnel policy for the Department of the Air Force family care plan publication. This publication applies to civilian employees (where noted in publication) and uniformed members of the Regular Air Force, the United States Space Force, the Air Force Reserve, and the Air National Guard. This publication may be supplemented at any level; all major command level supplements must be approved by the Human Resource Management Strategic Board prior to certification and approval. The DoDI is printed word-for-word in regular font without editorial review. Department of the Air Force supplementary material is printed in bold font and indicated by "(ADDED)(DAF)". Refer recommended changes and questions about this publication to the office of primary responsibility (OPR) using the Department of the Air Force (DAF) Form 847, *Recommendation for Change of Publication*; route DAF Forms 847 from the field through the appropriate functional chain of command. **Failure to obey the prohibitions and mandatory provisions in Enclosure 3, paragraph 1.e.1.a.i. constitutes a violation of Article 92(1), UCMJ—failure to obey lawful order or regulation. Article 92(1) of the UCMJ does not apply to members of the ANG while in Title 32 status (that is, activated for state duty under state command), but ANG members may be subject to an equivalent article under a state military justice code. Violations of these provisions by civilian employees may result in administrative action being taken without regard to other applicable criminal or civil sanctions for violations of related laws.** The authorities to waive wing, unit, or delta level requirements in this publication are identified with a Tier ("T-0, T-1, T-2, T3") number following the compliance statement. See DAFMAN 90-161, *Publishing Processes and Procedures*, for a description of the authorities associated with the Tier numbers. Submit requests for waivers through the chain of command to the appropriate Tier waiver approval authority, or alternately, to the publication OPR for non-tiered compliance items. Ensure all records generated as a result of processes prescribed in this publication adhere to AFI 33-322, *Records Management and Information Governance Program*,

and are disposed in accordance with the Air Force Records Disposition Schedule, which is located in the Air Force Records Information Management System.

This publication requires the collection and or maintenance of information protected by Title 5 United States Cord (USC) Section (§) 552a, *Records Maintained on Individuals* (Privacy Act of 1974), Secretary of the Air Force and Executive Order 9397 Numbering System for Federal Accounts Relating to Individual Persons, as amended. The applicable System of Record Notice(s) (SORN) F036 AFPC, Military Personnel Records System is available at: http://dpclo.defense.gov/Privacy/SORNs.aspx.

SUMMARY OF CHANGES

This document has been revised and should be completely reviewed. Changes incorporate the addition of the United States Space Force into the Department of the Air Force and provide clarification of program elements.

Department of Defense

INSTRUCTION

NUMBER 1342.19
May 7, 2010
Incorporating Change 1, November 30, 2017

USD(P&R)

SUBJECT: Family Care Plans

References: See Enclosure 1

1. PURPOSE. This Instruction:

a. Reissues DoD Instruction (DoDI) 1342.19 (Reference (a)) in accordance with the authority in DoD Directive (DoDD) 5124.02 (Reference (b)) and the guidance in DTM 17-004 and DoDIs 1342.22 and 1400.32 (References (c), (d), and (e)).

b. Establishes policy, assigns responsibilities, and prescribes procedures for the care of dependent family members of Service members, including Reserve Component (RC) members, and of members of the DoD Civilian Expeditionary Workforce (CEW) (hereafter referred to collectively as "Members") who are:

(1) Single parents.

(2) Dual-Member couples with dependents.

(3) Married with custody or joint custody of a child whose non-custodial biological or adoptive parent is not the current spouse of the Member, or who otherwise bear sole responsibility for the care of children under the age of 19 or for others unable to care for themselves in the absence of the Member.

(4) Primarily responsible for dependent family members.

(5) **(ADDED)(DAF) Civilian employees and contractor personnel in emergency essential positions, who are not CEW, are also strongly encouraged to establish family care plans consistent with this instruction. They should, within legal constraints, also avail themselves and their caregivers of the information, support, and resources provided by the Military and Family Readiness Center and social service organizations.**

APPLICABILITY. This Instruction applies to:

c. OSD, the Military Departments, the Office of the Chairman of the Joint Chiefs of Staff and the Joint Staff, the Combatant Commands, the Office of the Inspector General of the Department of Defense, the Defense Agencies, the DoD Field Activities, and all other organizational entities within the Department of Defense (hereafter referred to collectively as the "DoD Components").

d. Members serving in the Active Component (AC) and the RC, to include the Ready Reserve.

e. DoD civilian personnel designated as CEW members pursuant to Reference (d).

f. Those contractors serving in officially designated contingency operations who choose to participate in family care planning.

2. DEFINITIONS. See Glossary.

3. POLICY. It is DoD policy that:

a. All Service members identified in paragraph 1.b., and, in accordance with Reference (d), all CEW members in paragraph 1.b., shall plan for contingencies in the care and support of dependent family members, and shall develop and submit a family care plan within the timelines set forth in this Instruction.

(1) **(ADDED)(DAF) Only Members identified in para 1.b. are required to have a formal family care plan documented on AF Form 357, *Family Care Certification*; however, all Department of the Air Force members with dependent family members, not just those identified in paragraph 1.b., should have family care arrangements that reasonably cover situations that require Members be separated from their family even if a formal family care plan is not required by this instruction. These situations include, but are not limited to, contingency operations, severe weather evacuations, exercises, operational requirements, and overseas assignments to dependent-restricted areas. All Members should develop and have a plan in place in the event one or both caregivers are absent. Each Department of the Air Force member is responsible for the care of their family members during these circumstances. (T-2)**

b. Commanders and supervisors of Members, including their designated representatives, (hereafter referred to collectively as "Commanders") shall ensure that Members who meet the criteria in paragraph 1.b. have an up-to-date family care plan.

c. Service members who fail to produce a family care plan may be subject to disciplinary or administrative action that may result in separation from the Service in accordance with DoDIs 1332.14 and 1332.30 (References (f) and (g)).

d. While not required, contract offices should:

(1) Adhere to the spirit of this Instruction and include the requirements of this Instruction in contracts for personnel in support of officially designated contingency operations pursuant to DoDI 1100.22 (Reference (h)).

(2) Encourage contractors serving in officially designated contingency operations to have a current family care plan in accordance with this Instruction and Reference (h).

e. All Members (as well as contractors serving in officially designated contingency operations) and their designated family care plan caregivers shall, to the extent possible, have access to the information, support, and resources provided by military family centers and social service organizations. CEW members shall have access to the support provided by the CEW Readiness Cell.

f. All Members, as well as contractors serving in officially designated contingency operations, are encouraged to have a valid will that designates their choice of guardian(s) for permanent care of their dependent family members.

g. Pursuant to DoDI 1315.18 (Reference (i)), to assist Service members in developing family care plans and establishing a pattern of child care, Service members shall receive these deferments from duty:

(1) Military mothers of newborns shall receive a 4-month deferment from duty away from the home station for the period immediately following the birth of a child.

(2) Single Service members who adopt, or one member of a dual-military couple who adopts, shall receive a 4-month deferment from duty away from the home station from the date the child is placed in the home as a part of the formal adoption process.

(3) RC members who are mothers of newborns, single RC members who adopt, and one RC member of a dual-military couple who adopts shall receive a 4-month deferment from involuntary call to active duty immediately following the child's birth or placement in the home.

(4) **(ADDED)(DAF) Department of the Air Force personnel will follow duty deferment timelines set by DAFI 36-2110, *Total Force Assignments*. (T-1)**

h. In accordance with section 586 of Public Law 110-181 (Reference (j)), Service members meeting the conditions of this Instruction who may be deployed in an area for which imminent danger pay is authorized may request a deferment of deployment due to unforeseen circumstances.

4. RESPONSIBILITIES. See Enclosure 2.

5. PROCEDURES. See Enclosure 3.

6. RELEASABILITY. **Cleared for public release**. This instruction is available on the Directives Division Website at http://www.esd.whs.mil/DD/.

7.

8. EFFECTIVE DATE. This Instruction is effective May 7, 2010.

Clifford L. Stanley
Under Secretary of Defense for
Personnel and Readiness

JOHN A. FEDRIGO
Principal Deputy Assistant Secretary
(Manpower and Reserve Affairs)

Enclosures
1. References
2. Responsibilities
3. Procedures

Glossary

TABLE OF CONTENTS

ENCLOSURE 1. REFERENCES 9

ENCLOSURE 2. RESPONSIBILITIES 11

UNDER SECRETARY OF DEFENSE FOR PERSONNEL AND READINESS (USD(P&R)) 11
ASSISTANT SECRETARY OF DEFENSE FOR MANPOWER AND RESERVE AFFAIRS (ASD(M&RA)) 11
HEADS OF THE DoD COMPONENTS 11
SECRETARIES OF THE MILITARY DEPARTMENTS 11

ENCLOSURE 3. PROCEDURES 13

MEMBERS 13
General 13
Arranging for Caregivers 14
Developing Family Care Plans 15
Updating Family Care Plans 17
Family Care Plan Timelines 17
MILITARY DEPARTMENTS 18
COMMANDERS 20
LEGAL ASSISTANCE ATTORNEYS 22

GLOSSARY 24

DEFINITIONS 24

ENCLOSURE 1

REFERENCES

(a) DoD Instruction 1342.19, "Family Care Plans," July 13, 1992 (hereby cancelled)
(b) DoD Directive 5124.02, "Under Secretary of Defense for Personnel and Readiness (USD(P&R))," June 23, 2008
(c) Directive-type Memorandum 17-004, "Department of Defense Expeditionary Civilian Workforce," January 25, 2017
(d) DoD Instruction 1342.22, "Military Family Readiness," July 3, 2012, as amended
(e) DoD Instruction 1400.32, "DoD Civilian Work Force Contingency and Emergency Planning Guidelines and Procedures," April 24, 1995
(f) DoD Instruction 1332.14, "Enlisted Administrative Separations," ~~August 28, 2008~~ January 27, 2014, as amended
(g) DoD Instruction 1332.30, "Separation of Regular and Reserve Commissioned Officers," November 25, 2013, as amended
(h) DoD Instruction 1100.22, "Policy and Procedures for Determining Workforce Mix," April 12, 2010
(i) DoD Instruction 1315.18, "Procedures for Military Personnel Assignments," October 28, 2015, as amended
(j) Section 586, "Family Care Plans and Deferment of Deployment of Single Parent or Dual Military Couples with Minor Dependents," of Public Law 110-181, "National Defense Authorization Act for Fiscal Year 2008," January 28, 2008
(k) DoD Instruction 4001.01, "Installation Support," January 10, 2008, as amended
(l) Section 556, "Sense of Senate on Preparation and Coordination of Family Care Plans," of Senate Report 111-35, 111th Congress, 1st Session, "National Defense Authorization Act for Fiscal Year 2010," July 2, 2009
(m) DoD Instruction 1330.17, "DoD Commissary Program," June 18, 2014
(n) DoD Instruction 1330.09, "Armed Services Exchange Policy," December 7, 2005
(o) DoD Directive 1200.7, "Screening the Ready Reserve," November 18, 1999
(p) Office of the Chairman of the Joint Chiefs of Staff, "DoD Dictionary of Military and Associated Terms," current edition
(q) (ADDED)(DAF) Title 5 United States Code, Section 552a, *Records maintained on individuals* (Privacy Act of 1974)
(r) **(ADDED)(DAF) AFPD 36-29, *Military Standards*, April 11, 2019**
(s) **(ADDED)(DAF) AFI 33-322, *Records Management and Information Governance Programs*, March 23, 2020, incorporating Change 1, July 28, 2021**
(t) **(ADDED)(DAF) Department of the Air Force Instruction 36-2110, *Total Force Assignments,* August 2, 2021**
(u) **(ADDED)(DAF) DAFMAN 90-161, *Publishing Processes and Procedures,* 15 April 2022**
(v) (ADDED)(DAF) Executive Order 9397, *Numbering System for Federal Accounts Relating to Individual Persons,* (as amended)

(ADDED)(DAF) ***Prescribed Forms***
(ADDED)(DAF) AF Form 357, *Family Care Certification*

(ADDED)(DAF) ***Adopted Forms***
(ADDED)(DAF) DAF Form 847, *Recommendation for Change of Publication*

(ADDED)(DAF) AF Form 357, ***Family Care Certification***

(ADDED)(DAF) ***Office Symbols***
(ADDED)(DAF) AF/A1—Deputy Chief of Staff for Manpower, Personnel, and Services
(ADDED)(DAF) AF/RE—Chief of the Air Force Reserve
(ADDED)(DAF) ARPC/DPAM—Air Reserve Personnel Center – Pre-Trained Individual Manpower Division
(ADDED)(DAF) NGB/CF—Director of the Air National Guard
(ADDED)(DAF) SF/S1—Deputy Chief of Space Operations for Human Capital

(ADDED)(DAF) ***Abbreviations and Acronyms***
(ADDED)(DAF) AFPC—Air Force Personnel Center
(ADDED)(DAF) AF—Air Force
(ADDED)(DAF) ANG—Air National Guard
(ADDED)(DAF) DAF—Department of the Air Force
(ADDED)(DAF) DAFI—Department of the Air Force Instruction
(ADDED)(DAF) DET/OL—Detachment and Operating Location
(ADDED)(DAF) DoDI—Department of Defense Instruction
(ADDED)(DAF) CEW—Civilian Expeditionary Workforce
(ADDED)(DAF) IMA—Individual Mobilization Augmentee
(ADDED)(DAF) MPF—Military Personnel Flight
(ADDED)(DAF) NEO—Non-combatant Evacuation Operation
(ADDED)(DAF) TDY—Temporary Duty Yonder
(ADDED)(DAF) UCMJ—Uniform Code of Military Justice
(ADDED)(DAF) USSF—United States Space Force

ENCLOSURE 2

RESPONSIBILITIES

1. UNDER SECRETARY OF DEFENSE FOR PERSONNEL AND READINESS (USD(P&R)). The USD(P&R) shall:

a. Oversee implementation of this Instruction.

b. Develop and provide guidance to the DoD Components on the organization and preparation of family care plans for dissemination to commanders and other appropriate officials within their Components.

2. ASSISTANT SECRETARY OF DEFENSE FOR MANPOWER AND RESERVE AFFAIRS (ASD(M&RA)). The ASD(M&RA), under the authority, direction, and control of the USD(P&R), shall review the procedures established by the Military Departments to support family care plans and programs for the RCs.

3. HEADS OF THE DoD COMPONENTS. The Heads of the DoD Components shall ensure their subordinate organizations implement this Instruction.

4. SECRETARIES OF THE MILITARY DEPARTMENTS. The Secretaries of the Military Departments, in addition to the responsibilities in section 3 of this enclosure, shall:

a. Oversee implementation of this Instruction.

b. Specify the responsibilities of Commanders, Members and their chosen caregivers, family centers, military libraries, and installation social service agencies in the preparation, submission, and execution of family care plans.

c. In conjunction with the judge advocates general and the Staff Judge Advocate to the Commandant of the Marine Corps, establish the roles and responsibilities for family care planning of their legal offices and legal personnel.

d. Implement processes and systems to monitor family care planning within their respective Departments.

e. Require Service members who need a family care plan to designate a person who, in the event of their death or incapacity, will assume temporary responsibility for their minor children or dependent family members until a natural or adoptive parent or legal guardian assumes custody either by order of a court of competent jurisdiction or operation of law. This designation shall be recorded in the Service member's official military personnel record but is not a substitute for a will or other legal document.

f. Require family centers and family program coordinators, in accordance with DoD Instruction 4001.01 (Reference (k)), to support Commanders by providing information (e.g., brochures, handouts, classes) that cover all aspects of deployments, including information about family care plans.

g. Identify the officials who have primary responsibility to ensure Ready Reservists have an up-to-date family care plan; specify in implementing guidance the officials responsible for ensuring that Ready Reservists are adequately informed of the importance of a family care plan and of the resources available to assist in preparation of the plan.

(1) **(ADDED)(DAF) The Air Reserve Personnel Center – Pre-Trained Individual Manpower Division (ARPC/DPAM) informs Individual Ready Reserve members of their responsibility to make family care arrangements during annual screenings and survey mailings.**

h. Ensure that family support resources are provided for National Guard and Reserve members reasonably close, as resources permit, to National Guard and Reserve units at the applicable organizational levels.

i. Provide implementing regulations or guidance impacting the RCs to the ASD(M&RA) for review.

j. Provide contract officers a copy of this Instruction and encourage them to follow the provisions of this Instruction; ensure that contractors serving in officially designated contingency operations are encouraged to have a family care plan, pursuant to Reference (h).

ENCLOSURE 3

PROCEDURES

1. MEMBERS. This section applies to the Members identified in paragraph 1.b. above the signature of this Instruction.

a. General

(1) All Members are responsible for the care of dependent family members during deployments and temporary duty, as at all other times. All members shall develop a family care plan. For Service members, failure to produce a family care plan within the periods stipulated in paragraph 1.e. of this enclosure may result in disciplinary action and/or administrative separation in accordance with References (f) and (g).

(2) Each Member shall:

(a) Discuss with his or her Commander the necessity for and what is needed to develop an adequate family care plan. This discussion shall include plans for arranging the logistical, financial, medical, educational, and legal documentation necessary to ensure continuity of care and support for dependent family members.

1. (ADDED)(DAF) Complete his or her family care plan using the AF Form 357, or any future Department of the Air Force-provided virtual system that supersedes the AF Form 357. (T-2) While implementation may also be required during duty hours, exercises, alerts, extended duty hours, extreme weather evacuations, permanent change of station or permanent change of assignment and similar military obligations, commanders are encouraged to consider and leverage other tools (e.g., adjusting work shifts, temporary reassignment, maximizing telework, liberal leave approval, etc.) to balance mission requirements and taking care of their teams.

(b) Attempt, to the greatest extent possible, to inform the non-custodial biological or adoptive parent of his or her children, as applicable and as far in advance as practicable, of his or her impending absence due to military orders as recommended in section 556 of Senate Report 111-35 (Reference (l)).

(c) Attempt, to the greatest extent possible, to obtain the consent of the non-custodial biological or adoptive parent to any family care plan that would leave his or her child in the custody of a third party.

1. (ADDED)(DAF) If the situation warrants, consult with the servicing Staff Judge Advocate office prior to designating a non-custodial parent as the short- or long-term caregiver. Document the name of any non-custodial biological or adoptive parent not named as the caregiver, along with that person's consent to the family care plan. (T-3) If this individual does not consent, the Member should explain the absence of such consent in

writing and acknowledge the availability of legal counsel to discuss the associated risks and the best possible course of action (including the possibility of incorporating the family care plan into a temporary order by a court of competent jurisdiction).

(d) Certify his or her family care plan on an annual basis with his or her Commander.

(e) (ADDED)(DAF) Ensure all applicable family members' schools or other normal care providing organizations are aware when the member needs to execute a family care plan. (T-2) This will ensure the caregiver will be allowed to pick up family members. Additionally, if the parent homeschools their child, they must determine the legality, willingness, and qualification of the caregiver to continue the homeschool instruction or plan to enroll the child/children in another school. (T-2)

(f) (ADDED)(DAF) Implement a family care plan when required to be absent from their family members. (T-3) Military members should be prepared to ensure the safety of their families in the event of activation of noncombatant evacuation operations or other emergency evacuation situations.

b. Arranging for Caregivers. Each Member shall arrange for a caregiver and shall:

(1) Brief the caregiver on financial, medical, legal, educational, and logistical arrangements (to include discussion and arrangements to relocate the caregiver or family member to a designated location), military facilities, services, benefits, and entitlements of the dependent family members.

(a) (ADDED)(DAF) Ensure appropriate steps are taken so the caregiver(s) can use the base exchange, commissary, and military treatment facility on the member's behalf in caring for family members during periods of absence. (T-3) Contact military personnel flight (MPF) for assistance with an agent letter for authorized patrons. If the caregiver(s) reside closer to another installation and will be using those facilities, coordination with the MPF of the distant installation may be required to ensure the caregiver(s) can use that installation's facilities.

(2) Provide the caregiver copies of power(s) of attorney, wills, and other documents determined necessary by the Military Departments.

(a) (ADDED)(DAF) Members are strongly encouraged to execute a power of attorney for all caregivers to allow for medical care, enrollment in school, and any other actions which may be necessary to ensure the proper care of family members (unless designated caregiver has these legal rights, i.e., ex-spouse). Consider a power of attorney to act in loco parentis, as it may be required in some states. Note: Acceptability of a power of attorney differs for each State. Consult with the servicing staff judge advocate office.

1. (ADDED)(DAF) Providing a physical or electronic copy of each power of attorney for filing with the family care plan in the commander's support staff, first sergeant's, or commander's office is highly encouraged.

2. (ADDED)(DAF) Airmen and guardians are strongly encouraged to retain the original and give a copy to the caregiver upon assumption of custody of family members.

(3) Provide the caregiver with information on existing military and private sector community support resources from which he or she can receive assistance (e.g., location and points of contact for family support groups, community and family support centers, schools, social service organizations, and on-line support such as Military OneSource (available on the Internet at http://www.militaryonesource.com/home.aspx?MRole=&Branch=&Component=)). The Member can obtain this information from family centers; unit and State family readiness program directors, coordinators, and/or ombudsman; child care centers; schools; private sector social service organizations; and on-line resources (e.g., Military OneSource and Military HOMEFRONT (available at http://www.militaryhomefront.dod.mil/)).

(4) Discuss with and provide information to the caregiver about the potential behavioral changes of children during a long-term separation to assist the caregiver in determining how best to support, sustain, and assist children during a deployment or other separation. A Member whose caregiver is not located near a family program coordinator or family center may arrange to have information mailed or e-mailed to the caregiver from the family center at the Member's duty station, social service organizations, installation libraries, or Military OneSource.

c. Developing Family Care Plans. Each Member shall develop and forward an adequate family care plan through the appropriate chain of command for filing as prescribed by the regulations of the Military Department or the CEW organization concerned. The complete plan shall include, at a minimum:

(1) Applicable documentation identifying:

(a) Names and contact information of the caregiver and alternate caregiver.

1. (ADDED)(DAF) Designate a primary (long-term) caregiver on the family care plan to care for family members during Member's absence. (T-2) The primary caregiver(s) must be able to care for family members for any length of time the Department of the Air Force may require the Member to be absent from family members and therefore must not be another military member. Note: The long-term caregiver can also act as the short-term caregiver if all short-term caregiver requirements (as stated in the following paragraph) are met.

2. (ADDED)(DAF) Designate an individual (short-term caregiver) on the family care plan to assume temporary care of family members if primary (long-term) caregiver won't be immediately available or if the unit commander determines a short-term caregiver is essential to ensure the workability of the family care plan. (T-2) Members are recommended to identify more than one short-term caregiver when possible. A short-term caregiver must reside in the local vicinity and may be a military member. The installation commander determines local vicinity. This may be further defined by the member's immediate commander based on mission requirements such as response time to recalls, response to deployment requirements, etc. For reservists and Air National Guard personnel who do not reside at or near their permanent duty station, their unit commander will define the local vicinity in writing in the remarks section of AF Form 357. ***(T-3)***

3. (ADDED)(DAF) Airmen and guardians will not be required to utilize the long-term guardianship provisions of the family care plan to meet short-term, unforeseen childcare requirements. To ensure airmen and guardians have adequate time to arrange childcare, commanders should make every effort to provide 3 weeks' notice for duty requirements outside of normal duty hours or for significant changes to an airman or guardian's normal duty hours. Commanders are encouraged to consider and leverage other tools (e.g., adjusting work shifts, temporary reassignment, maximizing telework, liberal leave approval, etc.) to balance mission requirements and taking care of their teams.

4. (ADDED)(DAF) Commanders should make every effort to provide 6 weeks notification before requiring Airmen and Guardians to activate the long-term guardianship provisions of their family care plan for routine TDY, school attendance, multi-day exercises, or similar duty that involves travel or extended periods of absence from the home outside normal duty hours. The 6-week notification does not apply to military operations or missions assigned because of a national emergency or activation of forces for deployment or similar orders. Airmen and guardians in rapid deploying units must always be prepared to utilize their family care plans for deployments, even on short notice.

5. (ADDED)(DAF) Commanders are encouraged to give airmen and guardians maximum flexibility to personally attend to short-term, unforeseen parenting requirements. This includes, but is not limited to, unscheduled childcare responsibilities due to child development center/school closures or child illness.

(b) Provisions for short-term absences (e.g., temporary duty for schooling or training, or, in the case of RC members, active duty for training) and long-term absences (e.g., deployment or call to active duty), to include the period (beginning and end date) of time covered by the family care plan.

(c) Financial arrangements, allotment(s), and other appropriate documentation, to include power(s) of attorney, to ensure the self-sufficiency and financial security of dependent family members.

1. (ADDED)(DAF) Member must ensure caregiver(s) has access to adequate funds and transportation to support family members during Member's absence. (T-3)

(d) Logistical arrangements for the transportation of dependent family members and/or caregivers to a new location, including arrangements for a non-military escort for family members requiring assistance (e.g., infants and children, elderly and disabled adults) if the situation or personal circumstances so dictate, and arrangements for the medical, legal, educational, and financial support necessary to ensure continuity of care during the transport.

(e) The name of any non-custodial biological or adoptive parent not named as the caregiver, along with that person's consent to the family care plan. If this individual does not consent, the Member should explain the absence of such consent in writing and acknowledge the availability of legal counsel to discuss the associated risks and the best possible courses of action (including the possibility of incorporating the family care plan into a temporary order by a court of competent jurisdiction).

(f) The name of the person the Member designates, in the event of his or her death or incapacity, to assume temporary responsibility for dependent family members until a natural or adoptive parent or legal guardian assumes custody either by order of a court of competent jurisdiction or operation of law.

1. (ADDED)(DAF) The temporary custodian must reside in the local vicinity to ensure immediate control of family member(s) can be assumed. (T-3) This temporary custodian may be a military member.

(2) A statement signed by the Member certifying that the caregiver has accepted responsibility for care of the Member's dependent family members, including provisions for short- and long-term separations. The statement shall verify that the Member has briefed the caregiver and provided the caregiver copies of documents required for inclusion in the family care plan.

(a) (ADDED)(DAF) This statement may be made on the AF Form 357.

(3) (ADDED)(DAF) Additional information meant to assist the caregiver and dependents with the transition of care and to deal with the absence of the parent. Document additional information in the remarks section of the family care plan and include the following types of information:

(a) Personal information as reflected in the Defense Enrollment Eligibility Reporting System (full name, date of birth, and gender), school grade, name and address of school, school phone number, after-school care facility or routine care provider (if not school age) point of contact and phone number for all dependents. (T-3)

(b) Indicate if any dependents are part of exceptional family member program or have any special medical needs, language limitations, or other unique situations (attention deficit disorder, speech impediments, medications, phobias, etc.) a caregiver should be aware of for all dependents for whom they will be responsible. (T-3)

(c) Street address and/or directions to residence, schools, place of worship, routine care provider, and any other facilities the caregiver will need to be familiar with to take custody of dependents or to provide for them while under his/her care. (T-3)

d. Updating Family Care Plans. A Member shall revise his or her family care plan when changes in family circumstances, or other personal status, result in the Member becoming responsible for the logistical, medical, or financial support of another person. Such family circumstances include, but are not limited to:

(1) Birth of a child.

(2) Adoption of a child.

(3) Loss of a spouse through death, separation, or divorce.

(4) Enlistment or commissioning in the military (AC or RC) or employment in the CEW of a spouse that results in the Member and spouse becoming a dual-Member couple with responsibility for dependent family members.

(5) Absence of a spouse through career or job commitments or other personal reasons that result in the Member assuming responsibility for dependent family members.

(6) Assumption of sole care for an elderly or disabled family member.

(7) (ADDED)(DAF) Complete, revise, or recertify the family care plan upon arrival at a new unit, when personal status or family circumstances change, or during the annual recertification briefing. (T-2)

e. Family Care Plan Timelines. Members shall meet these deadlines for submission of their family care plans:

(1) Final Family Care Plan

(a) All Service members on active duty and all CEW members shall submit the final family care plan through the chain of command within 60 days of the discussion with the Commander that is required by subparagraph 1.a.(2)(a) of this enclosure. For Service members, failure to produce the family care plan may result in disciplinary or administrative action that may result in separation from the Service.

(i) (ADDED)(DAF) Failure by military members to obey the requirements of paragraph 1.e.1(a) of this enclosure constitutes a violation of Article 92(1)—failure to obey lawful general order or regulation. Violations may result in administrative disciplinary action without regard to otherwise applicable criminal or civil sanctions for violations of related laws. Violations of these provisions by civilian employees may result in administrative action being taken without regard to other applicable criminal or civil sanctions for violations of related laws. Commanders are encouraged to ensure members are afforded reasonable accommodations, are adequately counseled concerning family care plan deficiencies, and are afforded the opportunity to overcome those deficiencies prior to issuance of any administrative disciplinary action.

(b) RC members shall submit the final family care plan within 90 days of alert notification by the organizational function designated by the Military Department concerned.

(2) Notice of a Change in Family Circumstances

(a) All Service members on active duty and all CEW members shall notify their Commanders no later than 30 days after a change in family circumstances or personal status that generates the requirement for, or update of, a family care plan.

(b) Ready Reservists shall notify the authority designated by Military Department regulations no later than 60 days after a change in circumstance or personal status that generates the requirement for, or update of, a family care plan.

(3) Annual Certification. Members shall annually provide written certification to their Commanders that the family care plan is current.

(a) (ADDED)(DAF) Department of the Air Force members may accomplish this annual certification on the AF Form 357.

(4) Exceptions. If mitigating circumstances are involved, a Commander may grant a Member additional time to submit an adequate family care plan. This additional time is intended to accommodate those Members who are actively in the process of obtaining written agreements or court orders and have advised their Commanders of their actions and progress.

(5) (ADDED)(DAF) Departure for Overseas Assignment. Complete the family care plan within 60 days upon arriving at the overseas duty assignment. (T-2) Make arrangements for designated individuals to evacuate and care for family members if member is accompanied and serving in an overseas location covered by a noncombatant evacuation operation (NEO) plan. (T-2) When filling out the NEO section of the family care plan, a member must list one person to be the primary escort, while providing an alternate escort is optional. (T-2) Any other specific theater needs will be documented by the responsible Major Command. (T-3) Note: For the purpose of the family care plan, Alaska and Hawaii are considered overseas locations.

2. MILITARY DEPARTMENTS. The Military Departments shall:

a. Implement procedures that inform all Members as well as contractors serving in officially designated contingency operations of the requirements of this Instruction.

b. Require Members to submit family care plans to their Commanders for review.

c. Require that family care plans be validated annually by either the Commander or, for the RCs, by an appropriate organizational element designated by the RC. Validation is complete when the Member and the Commander or RC-designated activity discuss the adequacy of the current plan to cover all reasonable contingencies. The Commander and/or the Military Service Inspector General shall inspect the annually validated family care plan.

(1) (ADDED)(DAF) Individual mobilization augmentee (IMA) family care plans will be validated by the assigned active-duty unit.

d. Advise Members that their ability to serve can not be impacted negatively by their role as a parent, and that they must be able to satisfactorily perform their duties and remain available for worldwide assignment or deployment at all times. Advise Service members that their failure to do so can result in separation from the Service.

e. Provide caregivers access to installation facilities on behalf of Members to assist them in caring for dependent family members during periods of absence of the Member so that the caregiver is able to meet the conditions of the family care plan. Such access shall:

(1) Be granted based on family care plan forms, agent letters, letters of authorization, or power(s) of attorney as may be necessary to provide authorized entitlements to the Member's

family in accordance with DoDIs 1330.17 and 1330.09 (References (m) and (n)). The Military Departments shall accept proper documentation, regardless of the issuing branch of Service or RC category.

(2) Include access to training, counseling, call-center consultations (e.g., Military OneSource) and services, webinar sessions, document translation, telephonic translation services, and other services needed for them to meet their obligations as set forth in the family care plan.

f. Require RC members to submit family care plans. Copies of the family care plan shall remain with the appropriate RC military personnel office or unit as a part of the local personnel or training records.

(1) RC family care plans shall be inspected by the Commander(s) concerned or an agency designated by the Military Department at least annually.

(2) In cases of RC member non-compliance with this Instruction, Commanders may recommend discharge or, if the Service member is eligible, transfer to an inactive or retired status, in accordance with DoDD 1200.7 (Reference (o)).

(3) To increase awareness of the potential impact of long-term or sudden deployments, and to ensure RC members establish adequate, realistic, and workable family care plans, make resources available to them as needed to prepare and submit their plans. Refer RC members to:

(a) The appropriate family readiness program coordinator, director, ombudsman, private sector social service organizations, or other sources of assistance located in proximity to the member's unit or home.

(b) On-line resources (e.g., Military OneSource and Military HOMEFRONT).

(c) Installation family centers, legal assistance offices, child care centers, and other offices that retain lists of certified child care providers, including private sector community organizations that maintain lists of licensed caregivers in the community.

g. Ensure that family centers and other installation resources support Members in developing a family care plan by providing information and assistance when requested, but shall not delegate the authority or responsibility for family care plans.

(1) If needed, family centers shall provide individual counseling to Members and contractors requiring assistance in the development of the family care plan.

(2) Information provided by the family center shall cover subjects and problem areas faced by families when a Member deploys (e.g., separation anxiety, coping skills, parenting tips, stress management, communications, schooling, financial arrangements, and location of key documents).

h. (ADDED)(AF) Separation from military service for failure to comply with the directives contained in this instruction should be considered as a last resort. Before considering an administrative separation, commanders and supervisors are obligated to

formally counsel the airman or guardian in writing. This counseling must discuss the purpose of the family care plan and give the airman or guardian an opportunity to address any performance deficiencies.

i. (ADDED)(DAF) This instruction should not be used as the sole justification to conduct an involuntary separation in circumstances when commanders did not provide adequate notice about planned training events or other normal required duty assignments that fall outside core duty hours.

j. (ADDED)(DAF) Family care plans should only be used as a last resort when child development centers close for any unscheduled circumstance. (T-3)

k. (ADDED)(DAF) Family care plans will not be activated for unit physical training scheduled outside childcare facility hours as identified in the approved family care plan. (T-3)

l. (ADDED)(DAF) Units should try to make all reasonable accommodations for members prior to resorting to the member's family care plan. If reasonable accommodations cannot be met or have exhausted all options, then the family care plan can reasonably be enacted.

3. COMMANDERS. Commanders shall:

a. Require that the Members under their command, as identified in paragraph 1.b. above the signature of this Instruction, create and maintain duly-executed family care plans consistent with this Instruction. Ensure Members keep their family care plans up-to-date at all times.

b. Take a pro-active, hands-on role to ensure Members of their command fully understand the purpose and importance of a comprehensive family care plan, as well as its limitations, and encourage them to observe the guidance in this Instruction.

c. Ensure that Members fully understand the unique demands of military and CEW service as it relates to personal and family responsibilities and the necessity for realistic family care arrangements to ensure that Members are available for worldwide duty.

d. Inform Service members that they may be subject to administrative or disciplinary action and may be separated from the Service for failure to have an adequate family care plan.

e. Inform Members of the overriding authority of State courts to determine child custody arrangements, notwithstanding a family care plan, in accordance with Reference (l).

f. Advise Members of the risks involved if they are unable or unwilling to contact or gain the consent of the non-custodial biological or adoptive parent if the family care plan would leave the child in the custody of a third party. Strongly encourage them to obtain legal advice as far in advance of the absence as is practicable about the implications of failing to include the non- custodial biological or adoptive parent in the family care plan process. Emphasize that the failure to involve, or at least inform, the non-custodial biological or adoptive parent of custody arrangements in anticipation of an absence can undermine, or even render useless, the family care plan, in accordance with Reference (l).

g. Encourage Members to seek the assistance of military and community support resources, to include family support centers; legal assistance offices; family program directors, coordinators, and ombudsmen; Service relief organizations; the CEW Readiness Cell; and on-line resources (e.g., Military OneSource), in the completion of the family care plan.

(1) (ADDED)(DAF) Commanders should work closely with the military and family readiness center in developing their unit family care plan program. Commanders bear ultimate responsibility for the creation of and adequacy of their members' family care plans. Air Reserve Component commanders will designate, in writing, a full-time support personnel (active guard reserve, air reserve technician, ANG dual status technician, or civilian employee) to monitor the family care plan program during the commander's and first sergeant's absence between regularly scheduled drills or unit training assemblies. (T-1)

h. Consider and respond promptly to Member requests for a deferment of deployment due to unforeseen circumstances are submitted in accordance with Reference (j)

(1) (ADDED)(DAF) Unforeseen circumstances must be related to the family care plan. (T-2)

i. (ADDED)(DAF) During in-processing and on an annual basis, counsel all personnel with dependent family members on family care responsibilities. (T-1)

j. (ADDED)(DAF) Ensure those who need family care certification receive a copy of this supplement and direct members to complete and return the family care plan within 60 days of date notified of requirement (90 days for non-active duty). (T-3) Commanders may grant the member additional time to submit an acceptable family care plan for mitigating circumstances (i.e., court orders, obtaining written agreements).

k. (ADDED)(DAF) Review and discuss with members to ensure the workability of the member's family care arrangement. (T-2)

l. (ADDED)(DAF) Establish procedures to maintain family care plans for all unit personnel requiring a family care plan. (T-2) Dual military parents will each maintain a separate written family care plan in their unit of assignment. (T-2) Coordinate with the other commander to ensure uniformity and workability. (T-2) Document coordination by signing in section V, block 16 of AF Form 357. (T-2)

m. (ADDED)(DAF) Normally delegate the authority to counsel members and certify the family care plan to the unit first sergeant. (T-3) Exception: Will delegate, in writing, to detachment and operating location (DET/OL) chiefs to counsel members and certify the family care plan for members who are geographically separated from commander or first sergeant's location. (T-3) DET/OL will file the original family care plan in the DET/OL administrative office and send a copy to the commander for review and filing. (T-3)

n. (ADDED)(DAF) Store completed family care plans in the commander's support staff's, first sergeant's, or commander's office or any future Department of the Air Force provided virtual system that supersedes the AF Form 357. (T-3) Maintain the family care plan until superseded, the member is reassigned, or the member is no longer required to have a family care plan. (T-2) Treat the completed form as "Controlled Unclassified Information." (T-2)

o. (ADDED)(DAF) Ensure military members requiring a documented family care plan provide additional information in the remarks section of the family care plan as outlined in Enclosure 3, paragraph 1(c)(3). (T-1)

p. (ADDED)(DAF) Counsel members on family care responsibilities when they receive assignments overseas. (T-1)

q. (ADDED)(DAF) Ensure members complete the family care plan before final out-processing from the unit (except in the cases of retirement or separation). (T-2) Special attention should be placed on members transitioning to a dependent-restricted location to ensure the family care plan accounts for any absence and inability to provide immediate support to their dependents.

r. (ADDED)(DAF) Ensure the greatest amount of lead time possible is given to members prior to requiring the enactment of family care plans. (T-3)

4. LEGAL ASSISTANCE ATTORNEYS. Legal assistance attorneys or other qualified legal counsel shall, when appropriate, ensure their clients receive:

(1) A full explanation of the potential consequences of not including the non-custodial biological or adoptive parent in the creation of a family care plan.

(2) A discussion of appropriate courses of action, to include the benefits of validating temporary custody arrangements and the return of the child to the Member upon the Member's return, with an appropriate court.

5. (ADDED)(DAF) FORCE SUPPORT SQUADRON COMMANDER.

a. On behalf of the installation commander, establishes procedures for caregivers to enter the base and use the base exchange and commissary on behalf of the military member when the family care plan is in effect. (T-3) Note: Installation commanders may choose to delegate this task to their base exchange and commissary liaisons.

b. Appoints a family care plan program advisor to evaluate the effectiveness of unit family care programs to ensure compliance with this instruction and recommend possible improvement areas. (T-2) The program advisor should educate and advise commanders and first sergeants and should work closely with the military and family readiness center to ensure all base resources are used to their maximum potential.

6. (ADDED)(DAF) RECRUITING ORGANIZATIONS. Organizations responsible for recruiting personnel (i.e., Air Force Recruiting Service, Air Force Reserve Officer Training Corps, National Guard Bureau, Headquarters Air Force Reserve Command) will:

a. Ensure officer and enlisted candidates are counseled on family care responsibilities before they obligate themselves to the Department of the Air Force. (T-2)

b. Counsel or brief all members on family care responsibilities. (T-2) Students required to have a family care plan must complete one. The completed plan is then maintained in the commander's support staff's, first sergeant's, or commander's office of the training center having administrative responsibility for the student or any future Department of the Air Force provided virtual system that supersedes the AF Form 357. (T-2)

c. Ensure applicants realize the unique demands of military service, the necessity for making and maintaining family care arrangements, and that failure to make such arrangements will subject the applicant to disciplinary action or involuntary separation. (T-2)

d. Ensure candidates requiring a family care plan work with the appropriate recruiting organization for completion of the family care plan prior to entry into the Department of the Air Force. (T-2)

7. (ADDED)(DAF) MILITARY TRAINING CENTERS. Military training centers (i.e., Officer Training School, Basic Military Training, and technical training wings) will:

a. Counsel or brief all members on family care responsibilities. (T-2) Students required to have a family care plan must complete one. The completed plan is then maintained in the commander's support staff's, first sergeant's, or commander's office of the training center having administrative responsibility for the student or any future Department of the Air Force provided virtual system that supersedes the AF Form 357. (T-2)

b. Ensure members complete a new family care plan if the current arrangements are insufficient. (T-2)

GLOSSARY

DEFINITIONS

Unless otherwise noted, these terms and their definitions are for the purposes of this Instruction.

active duty. Defined in the DoD Dictionary of Military and Associated Terms (Reference (p)).

alternate caregiver. An individual who is not a Member, is at least 21 years of age, is capable of self-care and care of children or other dependent family members, and who agrees, preferably in writing, to perform the duties of caregiver in a caregiver's absence.

caregiver. An individual who is not a Member, is at least 21 years of age, is capable of self-care and care of children or other dependent family members, and who agrees, preferably in writing, to care for one or more family members during a Member's absence for indefinite periods to ensure the Member is available for worldwide duties.

CEW members. Civilian personnel who are a subset of the DoD civilian workforce and who are pre-identified to be organized, trained, and equipped in a manner that facilitates the use of their capabilities for operational requirements. These operations are typically away from the normal work locations of DoD civilians, or in situations where other civilians may be evacuated to assist military forces when the use of DoD civilians is appropriate. The CEW is composed of Emergency-Essential and Non-Combat Essential employees, Capability-Based Volunteers, individuals in the Capability-Based Former Employee Volunteer Corps, and Key Employees, as these categories of personnel are defined in Reference (d).

contractor in an officially designated contingency operation. An official contract position that is located overseas or would be transferred overseas during a crisis. The position is required to ensure the success of combat operations or to support combat-essential systems subsequent to mobilization and/or an evacuation order. The position cannot be converted to a military position because it requires uninterrupted performance to provide immediate and continuing support for combat operations and/or maintenance and repair of combat-essential systems.

dependent family member. A Member's spouse; children who are unmarried and under 19 years of age or who, regardless of age, are physically or mentally incapable of self-support; dependent parents, including step and legally adoptive parents of the Member's spouse; and dependent brothers and sisters, including step and legally adoptive brothers and sisters of the Member's spouse who are unmarried and under 19 years of age or who, regardless of age, are physically or mentally incapable of self support. Includes a spouse or other family member with disabilities who is dependent upon the member for financial, medical, or logistical support. May include a family member with limited command of English or who is unable to gain access to basic life-sustaining facilities (e.g., food or medical care).

dual-Member couple with dependents. Members married to each other who have joint responsibility for dependent family members.

(ADDED)(DAF) dependent/family-member restricted area. An area where the Member is not authorized to relocate family members.

(ADDED)(DAF) emergency essential civilian position. A civilian position that is located overseas or would be transferred overseas during a crisis situation. The position is required to ensure the success of combat operations or to support combat-essential systems subsequent to mobilization and/or an evacuation order. The position cannot be converted to a military position because it requires uninterrupted performance to provide immediate and continuing support for combat operations and/or support maintenance and repair of combat-essential systems.

family care plan. A document that outlines, on Service-specific forms, the person(s) who shall provide care for a Member's dependent family members in the absence of the Member due to military duty (training exercises, temporary duty, deployments, etc.). The plan outlines the legal, medical, logistical, educational, monetary, and religious arrangements for care of the Member's dependent family members. The plan must include all reasonably foreseeable situations and be sufficiently detailed and systematic to provide for a smooth, rapid transfer of responsibilities to the caregiver in the absence of the Member.

family care planning. The process of planning for the care of dependent family members. The planning is the initiative taken by a Member, or a contractor serving in an officially designated contingency operation, to use all available military and private sector resources to ensure that dependent family members receive adequate care, support, and supervision during his or her absence.

family centers. Refers generically to the offices that serve as Commanders' resources and focal points for information, referral, and coordination of installation and civilian community family support system programs and activities. These are presently named differently across the Military Services as Army Community Service Centers, Marine Corps Community Service Centers, Navy Fleet and Family Support Centers, and Air Force Airman and Family Readiness Centers.

(ADDED)(DAF) local vicinity. Located at or within the vicinity of the member's permanent duty station as defined by the installation commander. This may be further defined by the member's immediate commander based on mission requirements such as response time to recalls, response to deployment requirements, etc. For Reservists and Air National Guard personnel who do not reside at or near their permanent duty station, their unit commander will define the local vicinity in writing in the remarks section of AF Form 357.

(ADDED)(DAF) member. Members of military components, including Reserve Component members, and of members of the Department of Defense Civilian Expeditionary Workforce. Includes any member of a military service on active duty or in the Ready Reserve.

Ready Reserve. Defined in Reference (p).

RCs. Defined in Reference (p).

separated (from a spouse). The status of a married Member, or a contractor serving in an officially designated contingency operation, who is legally separated from his or her spouse under a court order or other legally recognizable decree, or who customarily resides apart from his or her spouse.

single parent. A Member or contractor who has no spouse or who is separated or otherwise apart from his or her spouse, but who has physical custody or joint custody of dependent family members.